

deems FAIRFIELD's points delineated in the demurrer conceded. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [lack of opposition to demurrer as abandonment of issue].)

As to CITY OF FAIRFIELD, the first-amended complaint is stricken as untimely. The case is dismissed and judgment is for CITY OF FAIRFIELD.

ONEMAIN FINANCIAL GROUP v CHRISTINA TAMAYO
Case No. FCM173951

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant CHRISTINA TAMAYO's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state Defendant's appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002